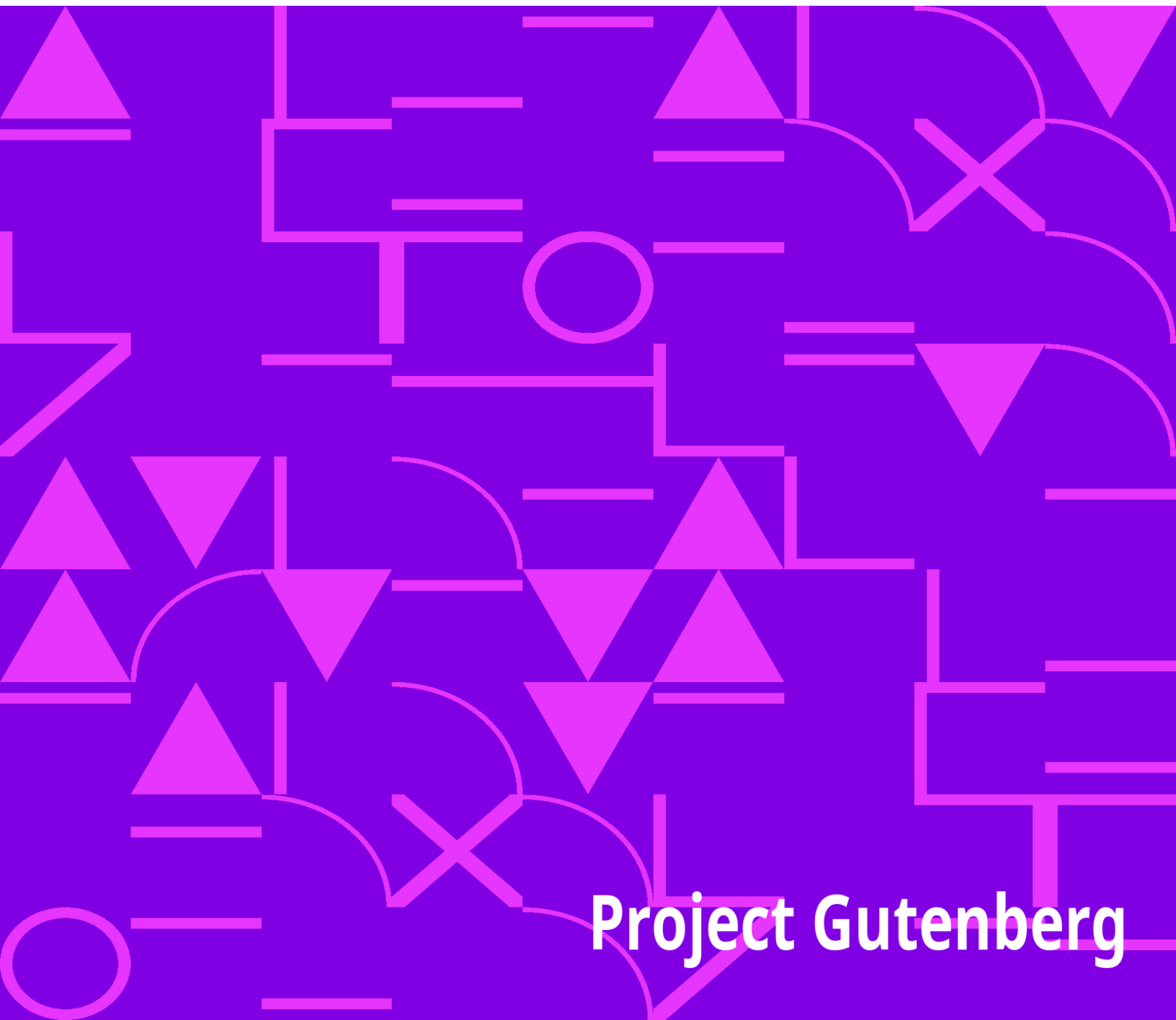


A treatise of civil power in ecclesiastical causes

Shewing that it is not lawful for any power on earth to compel in matters of religion

John Milton

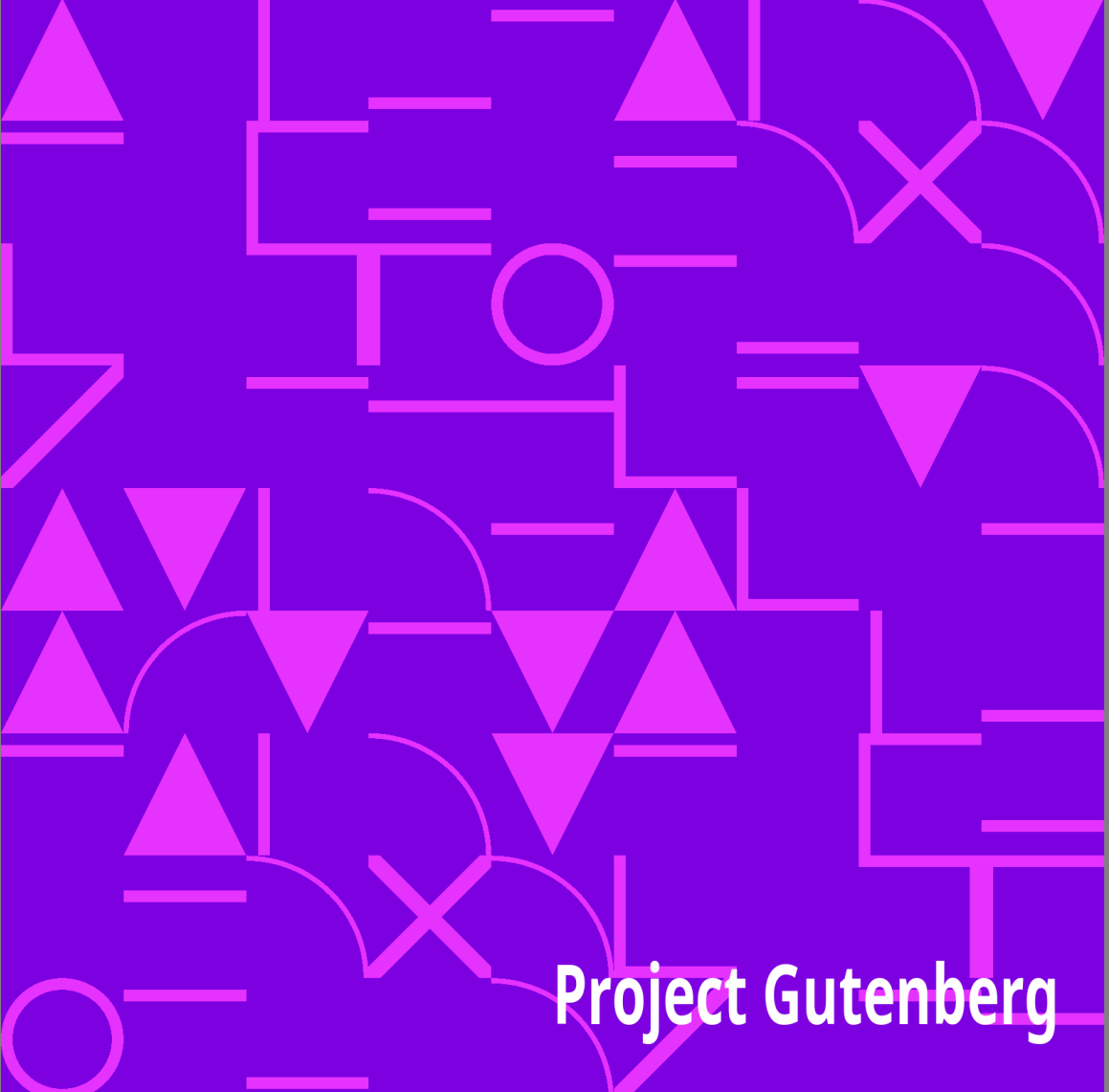
A decorative background pattern consisting of various geometric shapes in shades of purple and magenta, including triangles, circles, squares, and lines, arranged in a complex, overlapping design.

Project Gutenberg

A treatise of civil power in ecclesiastical causes

Shewing that it is not lawful for any power on earth to compel in matters
of religion

John Milton

A decorative geometric pattern in shades of purple and magenta, featuring various shapes such as triangles, circles, squares, and lines, some of which are interconnected or overlapping.

Project Gutenberg

The Project Gutenberg eBook of A treatise of civil power in ecclesiastical causes

This eBook is for the use of anyone anywhere in the United States and most other parts of the world at no cost and with almost no restrictions whatsoever. You may copy it, give it away or re-use it under the terms of the Project Gutenberg License included with this eBook or online at www.gutenberg.org. If you are not located in the United States, you will have to check the laws of the country where you are located before using this eBook.

Title: A treatise of civil power in ecclesiastical causes
Shewing that it is not lawful for any power on earth to compel in matters of religion

Author: John Milton

Release date: July 16, 2026 [eBook #79107]

Language: English

Original publication: London: repr. for J. Johnson, 1790

Other information and formats: www.gutenberg.org/ebooks/79107

Credits: George A. Rawlyk Library, Crandall University, produced from scans generously made available by the Internet Archive.

*** START OF THE PROJECT GUTENBERG EBOOK A TREATISE OF
CIVIL POWER IN ECCLESIASTICAL CAUSES ***

A TREATISE OF CIVIL POWER IN ECCLESIASTICAL CAUSES:

**SHEWING THAT IT IS NOT LAWFUL
FOR ANY POWER ON EARTH TO COMPEL IN
MATTERS OF RELIGION.**

THE AUTHOR JOHN MILTON.

FIRST PRINTED ANNO M.D.C.LIX.

LONDON:

RE-PRINTED FOR J. JOHNSON, ST. PAUL'S CHURCH-YARD. MDCCXC.

TO THE

REV. RICHARD PRICE, D.D. LL.D. F.R.S.

**FELLOW OF THE AMERICAN PHILOSOPHICAL
SOCIETIES AT PHILADELPHIA AND BOSTON.**

THIS MANUAL of John Milton is now most justly inscribed, as the assertor and protector of the civil and religious rights of mankind. Who, with dangers compassed round, yet undismayed by the terrors of absolute power, the frowns of fortune, and the malignity of the times, never relinquished his principles; but, with consistency and fortitude, maintained those principles which at present enlighten the world, and give assurances that human nature will be improved to the utmost of its faculties, resting with deity alone to fix their boundary.

THE EDITOR,

AN ENGLISHMAN,
A LOVER OF LIBERTY, HIS COUNTRY,
AND ITS ORIGINAL CONSTITUTION,

AS MOST NOBLY CONFIRMED
AT THE GLORIOUS REVOLUTION.

TO THE PARLIAMENT OF THE COMMONWEALTH OF ENGLAND. WITH THE DOMINIONS THEREOF.

I HAVE prepared, supreme council, against the much expected time of your sitting, this treatise; which, though to all christian magistrates equally belonging, and therefore to have been written in the common language of christendom, natural dutie and affection hath confined, and dedicated first to my own nation: and in a season wherein the timely reading thereof, to the easier accomplishment of your great work, may save you much labour and interruption: of two parts usually proposed, civil and ecclesiastical, recommending civil only from whom it takes both that name and nature. Yet not for this cause only do I require or trust to finde acceptance, but in a twofold respect besides: first, as bringing clear evidence of scripture and protestant maxims to the parliament of England, who in all their late acts, upon occasion, have professed to assert only the true protestant christian religion, as it is contained in the holy scriptures: next, in regard that your power being but for a time, and having in yourselves a christian libertie of your own, which at one time or other may be oppressed, thereof truly sensible, it will concern you while you are in power, so to regard other mens consciences, as you would your own should be regarded in the power of others; and to consider that any law against conscience is alike in force against any conscience, and so may one way or other justly redound upon yourselves. One advantage I make no doubt of, that I shall write to many eminent persons of your number, alreadie perfect and resolved in this important article of christianitie. Some of whom I remember to have heard often for several years, at a council next in authoritie to your own, so well joining religion with civil prudence, and yet so well distinguishing the different power of either, and this not only voting, but frequently reasoning why it should be so, that if any there present had been before of an opinion contrary, he might doubtless have departed thence a convert in that point, and have confessed, that then both commonwealth and religion will at length, if ever, flourish in christendom, when either they who govern

discern between civil and religious, or they only who so discern shall be admitted to govern. Till then nothing but troubles, persecutions, commotions can be expected; the inward decay of true religion among ourselves, and the utter overthrow at last by a common enemy. Of civil libertie I have written heretofore by the appointment, and not without the approbation of civil power: of christian libertie I write now; which others long since having done with all freedom under heathen emperors, I should do wrong to suspect, that I now shall with less under christian governors, and such especially as profess openly their defence of christian libertie; although I write this not otherwise appointed or induced than by an inward persuasion of the christian dutie which I may usefully discharge herein to the common Lord and Master of us all, and the certain hope of his approbation, first and chiefest to be sought: In the hand of whose providence I remain, praying all success and good event on your publick counsels to the defence of true religion and our civic rights.

JOHN MILTON

A TREATISE OF CIVIL POWER IN ECCLESIASTICAL CAUSES.

Two things there be which have been ever found working much mischief to the church of God, and the advancement of truth; force on the one side restraining, and hire on the other side corrupting the teachers thereof. Few ages have been since the ascension of our saviour, wherein the one of these two, or both together have not prevailed. It can be at no time therefore unseasonable to speak of these things; since by them the church is either in continual detriment and oppression, or in continual danger. The former shall be at this time my argument; the latter as I shall find God disposing me, and opportunity inviting. What I argue, shall be drawn from the scripture only; and therein from true fundamental principles of the gospel, to all knowing Christians undeniable. And if the governors of this commonwealth since the rooting out of prelates have made least use of force in religion, and most have favoured christian libertie of any in this island before them, since the first preaching of the gospel, for which we are not to forget our thanks to God, and their due praise, they may, I doubt not, in this treatise find that which not only will confirm them to defend still the christian libertie which we enjoy, but will incite them also to enlarge it, if in ought they yet straighten it. To them who perhaps hereafter, less experienced in religion, may come to govern or give us laws, this or other such, if they please, maybe a timely instruction: however, to the truth it will be, at all times, no unneedful testimonie; at least some discharge of that general dutie which no christian but, according to what he hath received, knows is required of him, if he have ought more conducing to the advancement of religion than what is usually endeavoured, freely to impart.

It will require no great labour of exposition to unfold what is here meant by matters of religion; being as soon apprehended as designed, such things as belong chiefly to the knowledge and service of God: and are either above the reach and light of nature without revelation from above, and therefore liable to be variously understood by human reason; or such things as are enjoined or forbidden by divine precept, which else by the light of reason

would seem indifferent to be done or not done; and so likewise must needs appear to every man as the precept is understood. Whence I here mean by conscience or religion, that full persuasion whereby we are assured that our belief and practice, as far as we are able to apprehend and probably make appear, is according to the will of God and his holy spirit within us, which we ought to follow much rather than any law of man, as not only his word every where bids us, but the very dictate of reason tells us. (Acts iv. 19.) “Whether it be right in the sight of God, to hearken unto you more than unto God, judge ye.” That for belief or practice in religion according to this conscientious persuasion no man ought to be punished or molested by any outward force on earth whatsoever, I distrust not, through God’s implored assistance, to make plain by these following arguments.

First, it cannot be denied, being the main foundation of our protestant religion, that we of these ages, have no other divine rule or authoritie from without us, warrantable to one another as a common ground but the holy scripture; and no other within us, but the illumination of the holy spirit so interpreting that scripture as warrantable only to ourselves, and to such whole consciences we can so persuade, can have no other ground in matters of religion but only from the scriptures. And these being not possible to be understood without this divine illumination, which no man can know at all times to be in himself, much less to be at any time for certain in any other, it follows clearly, that no man or body of man in these times can be the infallible judges or determiners in matters of religion to any other mens consciences but their own. And therefore those Bereans are commended, (Acts xvii. 11.) who after the preaching even of St. Paul, “searched the scriptures daily, whether those things were so.” Nor did they more than what God himself in many places commands us by the same apostle, to search, to try, to judge of these things ourselves: and gives us reason also, (Gal. vi. 4, 5.) “let every man prove his own work, and then shall he have rejoicing in himself alone, and not in another: for every man shall bear his own burden.” If then we count it so ignorant and irreligious in the papist to think himself discharged in God’s account, believing only as the church believes, how much greater condemnation will it be to the protestant his condemner, to think himself justified, believing only as the state believes?

With good cause therefore, it is the general consent of all sound protestant writers, that neither traditions, counsels, nor canons of any visible church, much less edicts of any magistrate or civil session, but the scripture only can be the final judge or rule in matters of religion, and that only in the conscience of every christian to himself. Which protestation made by the first publick reformers of our religion against the imperial edicts of Charles the fifth, imposing church-traditions without scripture, gave first beginning to the name of PROTESTANT; and with that name hath ever been received this doctrine, which prefers the scripture before the church, and acknowledges none but the scripture sole interpreter of itself to the conscience. For if the church be not sufficient to be implicitly believed, as we hold it is not, what can there else be named of more authoritie than the church but the conscience; than which God only is greater? (1 John iii. 20.) But if any man shall pretend, that the scripture judges to his conscience for other men, he makes himself greater not only than the church, but also than the scripture, than the consciences of other men; a presumption too high for any mortal; since every true christian able to give a reason of his faith, hath the word of God before him, the promised holy spirit, and the mind of Christ within him. (1 Cor. ii. 16.) A much better and safer guide of conscience, which as far as concerns himself he may far more certainly know, than any outward rule imposed upon him by others whom he inwardly neither knows nor can know, at least knows nothing of them more sure than this one thing, that they cannot be his judges in religion. (1 Cor. ii. 15.) “The spiritual man judgeth all things, but he himself is judged of no man.”

Chiefly for this cause do all true protestants account the pope antichrist, for that he assumes to himself this infallibilitie over both the conscience and the scripture; “sitting in the temple of God,” as it were opposite to God, “and exalting himself above all that is called God, or is worshiped,” (2 Thess. ii. 4.) That is to say, not only above all judges and magistrates, who though they be called gods, are far beneath infallible, but also above God himself, by giving law both to the scripture, to the conscience, and to the spirit itself of God within us. Whereas we find, (James iv. 12.) “there is one lawgiver, who is able to save and to destroy: who art thou that judgest another?” That Christ is the only lawgiver of his church and that it is here meant in religious matters, no well grounded christian will deny. Thus also

St. Paul, (Rom. xiv. 4.) “who art thou that judgest the servant of another? To his own lord he standeth or falleth: but he shall stand; for God is able to make him stand.” As therefore, of one beyond expression bold and presumptuous, both these apostles demand, “who art thou” that presumest to impose other law or judgment in religion than the only lawgiver and judge Christ, who only can save and can destroy, gives to the conscience? And the forecited place to the Thessalonians by compared effects resolves us, that be he or they who or wherever they be or can be, they are of far less authoritie than the church, whom in these things as protestants they receive not, and yet no less antichrist in this main point of antichristianism, no less a pope or popedom than he at Rome, if not much more; by setting up supreme interpreters of scripture either those doctors whom they follow, or, which is far worse, themselves as a civil papacie assuming unaccountable supremacie to themselves not in civil only but ecclesiastical causes.

Seeing then that in matters of religion, as hath been proved, none can judge or determine here on earth, no not church-governors themselves, against the consciences of other believers, my inference is, or rather not mine but our saviour’s own, that in those matters they neither can command nor use constraint; lest they run rashly on a pernicious consequence, forewarned in that parable, Matt. xiii. From verse 26, to 31: “least while ye gather up the tares, ye root up also the wheat with them. Let both grow together until the harvest: and in the time of harvest I will say to the reapers—Gather ye together first the tares, &c.” whereby he declares that this work neither his own ministers, nor any else, can discerningly enough or judgingly perform without his own immediate direction, in his own fit season; and that they ought till then not to attempt it. Which is further confirmed 2 Cor. i. 24. “not that we have dominion over your faith, but are helpers of your joy.” If apostles had no dominion or constraining power over faith or conscience, much less have ordinary ministers. (1 Pet. v. 2, 3.) “Feed the flock of God not by constraint, &c. neither as being lords over God’s heritage.”

But some will object, that this overthrows all church discipline, all censure of errors, if no man can determine. My answer is that what they hear is plain scripture; which forbids not church sentence or determining, but as it ends in violence upon the conscience unconvinced. Let who so will

interpret or determine, so it be according to true church-discipline; which is exercised on them only who have willingly joined themselves in that covenant of union, and proceeds only to a separation from the rest, proceeds never to any corporal inforcement or forfeiture of monie; which in spiritual things are the two arms of antichrist, not of the true church; the one being an inquisition, the other no better than a temporal indulgence of sin for monie, whether by the church exacted or by the magistrate; both the one and the other a temporal satisfaction for what Christ hath satisfied eternally; a popish commuting of penaltie, corporal for spiritual; a satisfaction to man, especially to the magistrate, for what and to whom we owe none: these and more are the injustices of force and fining in religion, besides what I most insist on, the violation of God's express commandment in the gospel, as hath been shewn. Thus then if church governors cannot use force in religion, though but for this reason, because they cannot infallibly determine to the conscience without convincement, much less have civil magistrates authoritie to use force, where they can much less judge; unless they mean only to be civil executioners of them who have no civil power to give them such commission, no nor yet ecclesiastical to any force or violence in religion. To sum up all in brief, if we must believe as the magistrate appoints, why not rather as the church? If not as either without convincement, how can force be lawful?

But some are ready to cry out, what shall then be done to blasphemie? Them I would first exhort not thus to terrifie and pose the people with a greek word: but to teach them better what it is; being a most usual and common word in that language to signifie any slander, any malicious or evil speaking, whether against God or man or any thing to good belonging: blasphemie or evil speaking against God maliciously, is far from conscience in religion according to that of Mark ix. 39. "there is none who doth a powerful work in my name, and can lightly speak evil of me." If this suffice not, I reset them to that prudent and well deliberated act of August 9, 1650; where the parliament defines blasphemie against God, as far as it is a crime belonging to civil judicature, "plenius ac Melius Chrysippo and Crantore;" in plain English, more warily, more judiciously, more orthodoxally, than twice their number of divines have done in many a prolix volume: although in all likelihood they, whose whole studie and profession these things are,

should be most intelligent and authentic therein, as they are for the most part, yet neither they, nor these, unerring always or infallible.

But we shall not carry it thus; another Greek apparition stands in our way, “heresie” and “heresie,” in a manner also railed at to the people as in a tongue unknown. They should first interpret to them, that heresie, by what it signifies in that language, is no word of evil note; meaning only the choice or following of any opinion good or bad in religion or any other learning: and thus not only in heathen authors, but in the new Testament itself without censure or blame. (Acts xv. 5.) “Certain of the heresie of the pharisees which believed,” and xxvi. 5. “after the exactest heresie of religion I lived a pharisee.” In which sense, presbyterian or independent may without reproach be called a heresie. Where it is mentioned with blame, it seems to differ little from schism; (1 Cor. xi. 18. 19.) “I hear that there be schisms among you, &c. ;” though some who write of heresie after their own heads, would make it far worse than schism; whereas on the contrarie, schism signifies division, and in the worst sense; heresie, choice only of one opinion before another, which may be without discord. In apostolic times, therefore, ere the scripture was written, heresie was a doctrine maintained against the doctrine by them delivered: which, in these times, can be no otherwise defined than a doctrine maintained against the light, which we now only have, the scripture.

Seeing therefore that no man, no synod, no session of men, through called the church, can judge definitively the sense of scripture to another man’s conscience, which is well known to be a general maxim of the protestant religion, it follows plainly, that he who holds in religion that belief or those opinions which to his conscience and utmost understanding appear with most evidence or probability in the scripture, though to others he seem erroneous, can no more be justly censured for a heretic than his censurers; who do but the same thing themselves while they censure him for so doing. For ask them or any protestant, which hath most authoritie, the church or the scripture? They will answer, doubtless, that the scripture: and what hath most authoritie, that no doubt but they will confess is to be followed. He then who to his best apprehension follows the scripture, though against any point of doctrine by the whole church received, is not

the heretic; but he who follows the church against his conscience and persuasion grounded on the scripture.

To make this yet more undeniable, I shall only borrow a plain similie, the same which our own writers, when they would demonstrate plainest that we rightly prefer the scripture before the church, use frequently against the papist in this manner. As the Samaritans believed Christ, first for the woman's word, but next and much rather for his own, so we the scripture; first on the church's word, but afterwards and much more for its own, as the word of God; yea the church itself we believe then for the scripture. The inference of itself follows; if by the protestant doctrine we believe the scripture not for the church's saying, but for its own, as the word of God, then ought we to believe what in our conscience we apprehend the scripture to say, though the visible church with all her doctors gainsay; and being taught to believe them only for the scripture, they who so do are not heretics, but the best protestants: and by their opinions, whatever they be, can hurt no protestant, whose rule is not to receive them but from the scripture: which to interpret convincingly to his own conscience none is able but himself, guided by the holy spirit and not so guided, none than he to himself can be a worse deceiver.

To protestants therefore whose common rule and touchstone is the scripture: nothing can with more conscience, more equitie, nothing more protestantly can be permitted than a free and lawful debate at all times by writing, conference, or disputation of what opinion soever, disputable by scripture: concluding, that no man in religion is properly a heretic at this day, but he who maintains traditions or opinions not probable by scripture; who, for ought I know, is the papist only; he the only heretic, who counts all heretics but himself. Such as these, indeed, were capitally punished by the laws of Moses, as the only true heretics, idolaters, plain and open deserters of God and his known law: but in the gospel such are punished by ex-communication only; (Tit. iii. 10.) "an heretic, after the first and second admonition, reject."

But they who think not this heavy enough, and understand not that dreadful awe and spiritual efficacie which the apostle hath expressed so highly to be in church-discipline, (2 Cor. x.) of which anon; and think

weakly that the church of God cannot long subsist but in a bodily fear, for want of other proof, will needs wrest that place of S. Paul, (Rom. xiii.) to set up civil inquisition, and give power to the magistrate both of civil judgment and punishment in causes ecclesiastical. But let us see with what strength of argument. "Let every soul be subject to the higher powers." First, how prove they that the apostle means other powers than such as they to whom he writes were then under; who meddled not at all in ecclesiastical causes, unless as tyrants and persecutors; and from them, I hope, they will not derive either the right of magistrates to judge in spiritual things, or the duty of such our obedience. How prove they next, that he intitles them here to spiritual causes, from whom he withheld, as much as in him lay, the judging of civil. (1 Cor. vi. 1, &c.) If he himself appealed to Caesar, it was to judge his innocence, not his religion. "For rulers are not a terror to good works, but to the evil;" then are they not a terror to conscience, which is the rule or judge of good works grounded on the scripture. But heresie, they say, is reckoned among evil works; (Gal. V. 20.) as if all evil works were to be punished by the magistrate; whereof this place, their own citation, reckons up besides heresie a sufficient number to confute them; "uncleanness, wantonness, enmitie, strife, emulations, animosities, contentions, envyings;" all which are far more manifest to be judged by him than heresie, as they define it; and yet I suppose they will not subject these evil works, nor many more such like, to his cognisance and punishment.

"Wilt thou then not be afraid of the power? Do that which is good and thou shalt have praise of the same." This shews that religious matters are not here meant; wherein from the power here spoken of they could have no praise. "For he is the minister of God to thee for good." True; but in that office, and to that end, and by those means, which in this place must be clearly found, if from this place they intend to argue. And, how for thy good by forcing, oppressing, and insnaring thy conscience? Many are the ministers of God, and their offices no less different than many; none more different than state and church-government. Who seeks to govern both, must needs be worse than any lord prelate or church-pluralist: for he in his own facultie and profession, the other not in his own, and for the most part not thoroughly understood, makes himself supreme lord or pope of the church as far as civil jurisdiction stretches, and all the ministers of God therein, his ministers, or his curates rather in the function only, not in the

government: while he himself assumes to rule by civil power things to be ruled only by spiritual: when as this very chapter, v. 6. Appointing him his peculiar office, which requires utmost attendance, forbids him this worse than church-plurality from that full and weighty charge, wherein alone he is “the minister of God, attending continually on this very thing.”

To little purpose will they here instance Moses, who did all by immediate divine direction; no, nor yet Asa, Jehoshaphat, or Josiah, who both might when they pleased receive answer from God, and had a commonwealth by him delivered them, incorporated with a national church exercised more in bodily than in spiritual worship, so as that the church might be called a commonwealth and the whole commonwealth a church: nothing of which can be said of christianitie, delivered without the help of magistrates, yea in the midst of their opposition; how little then with any reference to them or mention of them, save only of our obedience to their civil laws, as they countenance good and deter evil: which is the proper work of the magistrate, following in the same verse, and shews distinctly wherein he is the minister of God, “a revenger to execute wrath on him that doth evil.” But we must first know who it is that doth evil: the heretic they say among the first. Let it be known then certainly who is a heretic: and that he who holds opinions in religion professedly from tradition, of his own inventions, and not from scripture but rather against it, is the only heretic; and yet though such, not always punishable by the magistrate, unless he do evil against a civil law, properly so called, hath been already proved without need of repetition.

“But if thou do that which is evil, be afraid.” To do by scripture and gospel according to conscience is not to do evil; if we thereof ought not to be afraid, he ought not by his judging to give cause. Causes therefore of religion are not here meant. “For he beareth not the sword in vain.” Yes altogether in vain, if it smite he knows not what; if that for heresie, which not the church itself, much less he, can determine absolutely to be so; if truth for error, being himself so often fallible, he bears the sword not in vain only, but unjustly and to evil. “Be subject not only for wrath, but for conscience sake.” How, for conscience sake against conscience? By all these reasons it appears plainly that the apostle in this place gives no judgment or coercive power to magistrates, neither to those then, nor these

now, in matters of religion; and exhorts us no otherwise than he exhorted those Romans.

It hath now twice befallen me to assert, through God's assistance, this most wrested and vexed place of scripture; heretofore, against Salmasius and regal tyrannie over the state; now, against Erastus and state-tyrannie over the church. If, from such uncertain or rather such improbable grounds as these, they endue magistracie with spiritual judgment, they may as well invest him in the same spiritual kind with power of utmost punishment, excommunication; and then turn spiritual into corporal, as no worse authors did than Chrysostom, Jerome and Austine, whom Erasmus and others, in their notes on the new Testament, have cited to interpret that cutting off, which S. Paul wished to them who had brought back the Galatians to circumcision, no less than the amercement of their whole virilitie; and Grotius adds that this concising punishment of circumcisers became a penal law thereupon among the Visigothes: a dangerous example of beginning in the spirit to end so in the flesh: whereas that cutting off much likelier seems meant a cutting off from the church, not unusually so termed in scripture, and a zealous imprecation, not a command. But I have mentioned this passage to shew how absurd they often prove who have not learned to distinguish rightly between civil power and ecclesiastical.

How many persecutions, then imprisonments, banishments, penalties and stripes! How much bloodshed have the forcers of conscience to answer for, and protestants rather than papists! For the papist, judging by his principles, punishes them who believe not as the church believes, though against the scripture: but the protestant, teaching every one to believe the scripture, though against the church, counts heretical and persecutes, against his own principles, them who in any particular so believe as he in general teaches them; them, who most honor and believe divine scripture, but not against it any human interpretation, though universal; them, who interpret scripture only to themselves, which by his own position none but they to themselves can interpret; them who use the scripture no otherwise by his own doctrine to their edification, than he himself uses it to their punishing; and so, whom his doctrine acknowledges a true believer, his discipline persecutes as a heretic. The papist exacts our belief as to the church due above scripture; and by the church, which is the whole people of

God, understands the pope, the general councils prelatical only, and the surnamed fathers: but the forcing protestant though he deny such belief to any church whatsoever, yet takes it to himself and his teachers, of far less authoritie than to be called the church, and above scripture believed: which renders his practice both contrarie to his belief, and far worse than that belief which he condemns in the papist. By all which well considered, the more he professes to be a true protestant, the more he hath to answer for his persecuting than a papist. No protestant therefore, of what sect soever, following scripture only, which is the common sect wherein they all agree, and the granted rule of every man's conscience to himself, ought, by the common doctrine of protestants, to be forced or molested for religion.

But as for poperie and idolatrie, why they also may not hence plead to be tolerated, I have much less to say. Their religion the more considered, the less can be acknowledged a religion; but a Roman principalitie rather, endeavouring to keep up her old universal dominion under a new name and mere shadow of a catholic religion; being indeed more rightly named a catholic heresie against the scripture; supported mainly by a civil, and, except in Rome, by a foreign power: justly therefore to be suspected, not tolerated by the magistrate of another country. Besides, of an implicit faith, which they profess, the conscience also becomes implicit; and so by voluntarie servitude to man's law, forfeits her christian libertie. Who then can plead for such a conscience, as being implicitly enthralled to man instead of God, almost becomes no conscience, as the will, not free, becomes no will. Nevertheless, if they ought not to be tolerated, it is for just reason of state more than of religion; which they who force, though professing to be protestants, deserve as little to be tolerated themselves, being no less guilty of poperie in the most popish point. Lastly, for idolatrie, who knows it not to be evidently against all scripture both of the old and new Testament, and therefore a true heresie, or rather an impietie; wherein a right conscience can have nought to do; and the works thereof so manifest, that a magistrate can hardly err in prohibiting and quite removing at least the public and scandalous use thereof.

From the riddance of these objections, I proceed yet to another reason, why it is unlawful for the civil magistrate to use force in matters of religion; which is, because to judge in those things, thought we should grant him

able, which is proved he is not, yet as a civil magistrate he hath no right. Christ hath a government of his own, sufficient of itself to all his ends and purposes in governing his church, but much different from that of the civil magistrate: and the difference in this very thing principally consists, that it governs not by outward force, and that for two reasons. First, because it deals only with the inward man, and his actions, which are all spiritual, and to outward force not liable. Secondly, to shew us the divine excellence of his spiritual kingdom, able without worldly force, to subdue all the powers and kingdoms of this world, which are upheld by outward force only.

That the inward man is nothing else but the inward part of man, his understanding and his will, and that his actions thence proceeding; yet not simply thence, but from the work of divine grace upon them, are the whole matter of religion under the gospel, will appear plainly by considering what that religion is; whence we shall perceive yet more plainly that it cannot be forced. What evangelic religion is, is told in two words, faith and charitie; or belief and practice. That both these flow either the one from the understanding, the other from the will, or both jointly from both, once indeed naturally free, but now only as they are regenerate and wrought on by divine grace, is in part evident to common sense and principles unquestioned, the rest by scripture: concerning our belief, (Matt. xvi. 17.) “flesh and blood hath not revealed it unto thee, but my father which is in heaven: concerning our practice, as it is religious and not merely civil, Gal. V. 22. 23. and other places declare it to be the fruit of the spirit only. Nay our whole practical duty in religion is contained in charitie, or the love of God and our neighbour, no way to be forced, yet the fulfilling of the whole law; that is to say, our whole practice, which comprehend our whole religion, flow from faculties of the inward man, free and unconstrainable of themselves by nature, and our practice not only from faculties indued with freedom, but from love and charitie besides, incapable of force; and all these things by transgression lost, but renewed and regenerated in us by the power and gift of God-alone, how can such religion as this admit of force from man, or force be any way applied to such religion, especially under the free offer of grace in the gospel, but it must forthwith frustrate and make of no effect both the religion and the gospel. And that to compel outward profession, which they will say perhaps ought to be compelled though inward religion cannot, is to compel hypocrisie, not to advance religion,

shall yet, though of itself clear enough, be ere the conclusion further manifest.

The other reason why Christ rejects outward force in the government of his church, is, as I said before, to shew us the divine excellence of his spiritual kingdom, able without worldly force to subdue all the powers and kingdoms of this world, which are upheld by outward force only; by which to uphold religion otherwise than to defend the religious from outward violence, is no service to Christ or his kingdom, but rather a disparagement, and degrades it from a divine and spiritual kingdom to a kingdom of this world: which he denies it to be, because it needs not force to confirm it: (John xviii. 36.) “If my kingdom were of this world, then would my servants fight, that I should not be delivered to the jews.” This proves the kingdom of Christ not governed by outward force; as being none of this world, whose kingdoms are maintained all by force only: and yet disproves not that a christian commonwealth may defend itself against outward force in the cause of religion as well as in any other; though Christ himself, coming purposely to die for us, would not be so defended. (1 Cor. i. 27.) “God hath chosen the weak things of the world to confound the things which are mighty.” Then surely he hath not chosen the force of this world to subdue conscience and conscientious men, who in this world are counted weakest: but rather conscience, as being weakest, to subdue and regulate force, his adversarie, not his aid or instrument in governing the church. (2 Cor. x. 3. 4. 5. 6.) “For though we walk in the flesh, we do not war after the flesh: for the weapons of our warfare are not carnal, but mighty through God, to the pulling down of strong holds; casting down imaginations, and every high thing that exalts itself against the knowledge of God, and bringing into captivity every thought to the obedience of Christ: and having in a readiness to avenge all disobedience.” It is evident by the first and second verses of this chapter, that the apostle here speaks of that spiritual power by which Christ governs his church, how all sufficient it is, how powerful to reach the conscience and the inward man, with whom it chiefly deals, and whom no power else can deal with. In comparison of which, as it is here thus magnificently described, how uneffectual and weak is outward force with all her boistrous tools, to the shame of those Christians, and especially those churchmen, who to the exercising of church discipline never cease calling on the civil magistrate to interpose his fleshly force; an

argument that all true ministerial and spiritual power is dead within them: who think the gospel, which both began and spread over the whole world for above three hundred years under heathen and persecuting emperors, cannot stand or continue, supported by the same divine presence and protection to the world's end, much easier under the defensive favour only of a christian magistrate, unless it be enacted and settled, as they call it, by the state, a statute or a state-religion: and understand not that the church itself cannot, much less the state, settle or impose one tittle of religion upon our obedience implicit, but can only recommend or propound it to our free and conscientious examination: unless they mean to set the state higher than the church in religion, and with a gross contradiction give to the state in their settling petition that command of our implicit belief, which they deny in their settled confession both to the state and to the church. Let them cease then to importune and interrupt the magistrate from attending to his own charge in civil and moral things, the settling of things just, things honest, the defence of things religious settled by the churches within themselves; and the repressing of their contraries determinable by the common light of nature; which is not to constrain or to repress religion, probable by scripture, but the violators and persecutors thereof: of all which things he hath enough and more than enough to do, left yet undone; for which the land groans and justice goes to wrack the while: let him also forbear force where he hath no right to judge; for the conscience is not his province: least a worse woe arrive him, for worse offending, than was denounced by our saviour, (Matt. xxiii. 23.) against the pharisees: ye have forced the conscience, which was not to be forced; but judgment and mercy ye have not executed: this ye should have done, and the other let alone. And since it is the counsel and set purpose of God in the gospel by spiritual means which are counted weak, to overcome all power which resists him; let them not go about to do that by worldly strength, which he hath decreed to do by those means which the world counts weakness, lest they be again obnoxious to that saying, which in another place is also written of the pharisees, (Luke vii. 30.) "that they frustrated the counsel of God." The main plea is, and urged with much vehemence to their imitation, that the kings of Judah, as I touched before, and especially Josiah, both judged and used force in religion; (2 Chr. xxxiv. 33.) "he made all that were present in Israel to serve the Lord their God." An argument, if it be well weighed, worse than that used by the false prophet Shemaiah to the high priest, that in imitation of

Jehoiada he ought to put Jeremiah in the stocks, (Jer. xxix. 24, 26, &c.) for which he received his due denouncement from God.

But to this besides I return a three-fold answer: first, that the state of religion under the gospel is far differing from what it was under the law; then was the state of rigour, childhood, bondage and works, to all which force was not unbefitting; now is the state of grace, manhood, freedom and faith; to all which belongs willingness and reason, not force: the law was then written on tables of stone, and to be performed according to the letter, willingly or unwillingly; the gospel, our new covenant, upon the heart of every believer, to be interpreted only by the sense of charitie and inward persuasion: the law had no distinct government or governors of church and commonwealth, but the priests and levites judged in all causes not ecclesiastical only but civil, (Deut. xvii. 8, &c.) which under the gospel is forbidden to all church ministers, as a thing which Christ their master in his ministerie disclaimed, (Lu. xii. 14.) as a thing beneath them; (1 Cor. vi. 4.) and by many of our statutes, as to them who have a peculiar and far differing government of their own. If not, why different the governors? Why not church ministers in state affairs, as well as state ministers in church affairs? If church and state shall be made one flesh again as under the law, let it be withal considered, that God who then joined them hath now severed them; that which he so ordaining, was then a lawful conjunction; to such on either side as join again what he hath severed, would be nothing now but their own presumptuous fornication.

Secondly, the kings of Judah, and those magistrates under the law, might have recourse, as I said before, to divine inspiration; which our magistrates under the gospel have not, more than to the same spirit, which those whom they force have oft times in greater measure than themselves: and so, instead of forcing the christian, they force the holy ghost; and, against that wise forewarning of Gamaliel, fight against God.

Thirdly, those kings and magistrates used force in such things only as were undoubtedly known and forbidden in the law of Moses, idolatrie and direct apostacie from that national and strict enjoined worship of God; whereof the corporal punishment was by himself expressly set down: but magistrates under the gospel, our free, elective and rational worship, are

most commonly busiest to force those things which in the gospel are either left free, nay sometimes abolished, when by them compelled, or else controverted equally by writers on both sides, and sometimes with odds on that side which is against them. By which means they either punish that which they ought to favour and protect, or that with corporal punishment and of their own inventing, which not they but the church hath received command to chastise with a spiritual rod only. Yet some are so eager in their zeal of forcing, that they refuse not to descend at length to the utmost shift of that parabolical proof, Luke xiv. 16, &c. “compel them to come in:” therefore, magistrates may compel in religion. As if a parable were to be strained through every word or phrase, and not expounded by the general scope thereof: which is no other here, than the earnest expression of God’s displeasure on those recusant jews, and his purpose to prefer the gentiles on any terms before them; expressed here by the word “compel.”

But how compels he? Doubtless no otherwise than he draws, without which no man can come to him, (John vi. 44.) and that is by the inward persuasive motions of his spirit, and by his ministers; not by the outward compulsions of a magistrate or his officers.

The true people of Christ, as is foretold, (Psalm cx. 3.) “are a willing people in the day of his power.” Then much more now when he rules all things by outward weakness, that both his inward power and their sinceritie may the more appear. “God loveth a cheerful giver:” then certainly is not pleased with an uncheerful worshipper; as the very words declare of his evangelical invitations. (Isa. lv. i.) “Ho, every one that thirsteth, come.” (John vii. 37.) “If any man thirst.” (Rev. iii. 18.) “I counsel thee.” and (xxii. 17.) “whosoever will, let him take the water of life freely.” And in that grand commission of preaching to invite all nations (Mark, xvi. 16.) as the reward of them who come, so the penaltie of them who come not is only spiritual.

But they bring now some reason with their force, which must not pass unanswered; that the church of Thyatira was blamed, (Rev. ii. 20.) for suffering the false “prophetess to teach and to seduce.” I answer, that seducement is to be hindered by fit and proper means ordained in church discipline; by instant and powerful demonstration to the contrary; by

opposing truth to error, no unequal match; truth the strong, to error to the weak though fly and shifting. Force is no honest confutation; but uneffectual, and, for the most part, unsuccessful, oftentimes fatal to them who use it: sound doctrine diligently and duly taught, is of herself both sufficient, and of herself (if some secret judgment of God hinder not) always prevalent against seducers. This the Thyatirans had neglected, suffering, against church discipline, that woman to teach and seduce among them: civil force they had not then in their power; being the christian part only of that city, and then especially under one of those ten great persecutions, whereof this, the second, was raised by Domitian force, therefore, in these matters could not be required of them, who were then under force themselves.

I have shewn that the civil power hath neither right nor can do right by forcing religious things: I will now shew the wrong it doth; by violating the fundamental privilege of the gospel, the new birthright of every true believer, christian libertie. (2 Cor. iii. 17.) “Where the spirit of the Lord is, there is libertie.” (Gal. iv. 26.) “Jerusalem which is above, is free; which is the mother of us all;” and (31.) “we are not children of the bondwoman, but of the free. It will be sufficient in this place to say no more of christian libertie, than that it sets us free, not only from the bondage of those ceremonies, but also from the forcible imposition of those circumstances, place and time, in the worship of God, which, though by him commanded in the old law, yet in respect of that veritie and freedom which is evangelical, St. Paul comprehends both kinds alike, that is to say, both ceremonie and circumstance, under one and the same contemptuous name of “weak and beggarly rudiments,” (Gal. iv. 3, 9, 10. Col. ii. 8. with 16.) conformable to what our saviour himself taught, (John iv. 21.) “neither in this mountain nor yet at Jerusalem. In spirit in truth: for the Father seeketh such to worship him.” That is to say, not only sincere of heart, for such he sought ever, but also, as the words here chiefly import, not compelled to place, and by the same reason, not to any set time, as his apostle by the same spirit hath taught us, (Rom. xiv. 6, &c.) “one man esteemeth one day above another, another, &c.” (Gal. iv. 10.) “Ye observe days and months, &c.” (Col. ii. 16.)

These, and other such places of scripture, the best and learnedest reformed writers have thought evident enough to instruct us in our freedom, not only from ceremonies, but from those circumstances also, though imposed with a confident persuasion of moralitie in them, which they hold impossible to be in place or time. By what warrant then our opinions and practices are of late turned quite against all other protestants, and that which is to them orthodoxal, to us become scandalous and punishable by statute, I wish were once again better considered; if we mean not to proclaim a schism, in this point, from the best and most reformed churches abroad.

They who would seem more knowing, confess that these things are indifferent, but for that very cause by the magistrate may be commanded. As if God of his special grace in the gospel had to this end freed us from his own commandments in these things, that our freedom should subject us to a more grievous yoke, the commandments of men. As well may the magistrate call that common or unclean which God hath cleansed, forbidden to St. Peter; (Acts x. 15.) as well may he loosen that which God hath straitened, or straiten that which God hath loosened, as he may enjoin those things in religion which God hath left free, and lay on that yoke which God hath taken off. For he hath not only given us this gift as a special privilege and excellence of the free gospel above the servile law, but strictly also hath commanded us to keep it and enjoy it. (Gal. v. 13.) “You are called to libertie.” (1 Cor. vii. 23.) “Be not made the servants of men.” (Gal. v. 14.) “Stand fast, therefore, in the libertie wherewith Christ has made us free; and be not entangled again with the yoke of bondage.” Neither is this a mere command, but for the most part, in these foresighted places, accompanied with the very weightiest and inmost reasons of the christian religion. (Rom. xiv. 9. 10.) “For to this end, Christ both died, and rose and revived, that he might be Lord both of the dead and living. But why dost thou judge thy brother, &c?” how presumest thou to be his lord, to be whose only lord, at least in these things, Christ both died, and rose and lived again? “We shall all stand before the judgment seat of Christ.” Why then dost thou not only judge, but persecute in these things for which we are to be accountable to the tribunal of Christ only, our Lord and lawgiver? (1 Cor. vii. 23.) “Ye are bought with a price; be not made the servants of men.” Some trivial price belike, and for some frivolous pretences paid in their opinion, if bought and by him redeemed who is God, from what was once service of God, we shall

be enthralled again, and forced by men to what now is but the service of men. (Gal. iv. 31, with v. 1.) “We are not children of the bondwoman, &c. stand fast therefore, &c.” (Col. ii. 8.) “Beware lest any man spoil you, &c. after the rudiments of the world, and not after Christ.” Solid reasons whereof are continued through the whole chapter. Verse 10, “Ye are complete in him, which is the head of all principalitie and power.” Not completed therefore, or made the more religious, by those ordinances of civil power, from which Christ their head hath discharged us; “blotting out the hand-writing of ordinances, that was against us, which was contrary to us; and took it out of the way, nailing it to his cross; ver. 14. blotting out ordinances written by God himself, much more those so boldly written over again by men: ordinances which were against us, that is, against our frailtie, much more those that are against our conscience. “Let no man therefore judge you in respect of, &c. ver. 16. (Gal. iv. 3, &c.) “Even so we, when we were children, were in bondage under the rudiments of the world: but when the fulness of time were come, God sent forth his son, &c. to redeem them that were under the law, that we might receive the adoption of sons, &c. Wherefore thou art no more a servant, but a son, &c. But now, &c. how turn ye again to the weak and beggarly rudiments, whereunto ye desire again to be in bondage? Ye observe days, &c.”

Hence it plainly appears, that if we be not free we are not sons, but still servants unadopted; and if we turn again to those weak and beggarly rudiments, we are not free; yea, though willingly, and with a misguided conscience, we desire to be in bondage to them; how much more then if unwillingly and against our conscience? Ill was our condition changed from legal to evangelical, and small advantage gotten by the gospel, if for the spirit of adoption to freedom, promised us, we receive again the spirit of bondage to fear; if our fear which was then servile towards God only, must be now servile in religion towards men: strange also and preposterous fear, if when and wherein it hath attained by the redemption of our saviour to be filial only towards God, it must be now servile towards the magistrate. Who, by subjecting us to his punishment in these things, brings back into religion that law of terror and satisfaction, belonging now only to civil crimes; and thereby in effect abolishes the gospel, by establishing again the law to a far worse yoke of servitude upon us than before.

It will, therefore, not misbecome the meanest christian to put in mind christian magistrates, and so much the more freely, by how much the more they desire to be thought christian, (for they will be thereby, as they ought to be in these things, the more our brethren and the less our lords,) that they meddle not rashly with christian libertie, the birthright and outward testimonie of our adoption: lest, while they little think it, nay think they do God service, they themselves, like the sons of that bondwoman, be found persecuting them who are freeborn of the spirit; and, by a sacrilege of not the least aggravation, bereaving them of that sacred libertie which our saviour with his own blood purchased for them.

A fourth reason why the magistrate ought not to use force in religion, I bring from the consideration of all those ends which he can likely pretend to the interposing of his force therein: and those hardly can be other than, first the glory of God; next, either the spiritual good of them whom he forces, or the temporal punishment of their scandal to others. As for the promoting of God's glory, none, I think, will say that his glory ought to be promoted in religious things by unwarrantable means, much less by means contrarie to what he hath commanded. That outward force is such, and that God's glory in the whole administration of the gospel according to his own will and counsel ought to be fulfilled by weakness, at least so refuted, not by force; or if by force, inward and spiritual, not outward and corporeal, is already proved at large.

That outward force cannot tend to the good of him who is forced in religion, is unquestionable. For in religion whatever we do, under the gospel, we ought to be thereof persuaded without scruple; and are justified by the faith we have, not by the work we do. (Rom. xiv. 5.) "Let every man be fully persuaded in his own mind." The other reason which follows necessarily, is obvious, (Gal. ii. 16.) and in many other places of St. Paul, as the groundwork and foundation of the whole gospel, that we are "justified by the faith of Christ, and not by the works of the law." If not by the works of God's law, how then by the injunctions of man's law? Surely force cannot work persuasion, which is faith; cannot therefore justify, nor pacify, the conscience; and that which justifies not in the gospel, condemns; is not only not good, but sinful to do. (Rom. xiv. 23.) "Whatsoever is not of faith, is sin." It concerns the magistrate then to take heed, how he forces in

religion conscientious men: left, by compelling them to do that whereof they cannot be persuaded, that wherein they cannot find themselves justified, but by their own consciences condemned, instead of aiming at their spiritual good, he force them to do evil; and while he thinks himself Asa, Josiah, Nehemiah, he be found Jeroboam, who caused Israel to sin; and thereby draw upon his own head all those sins and shipwrecks of implicit faith and conformitie, which he hath forced, and all the wounds given to those little ones, whom to offend he will find worse one day than that violent drowning mentioned Matt. xviii. 6.

Lastly, as a preface to force, it is the usual pretence, that although tender consciences shall be tolerated, yet scandals thereby given shall not be unpunished, prophane and licentious men shall not be encouraged to neglect the performance of religious and holy duties, by colour of any law giving libertie to tender consciences. By which contrivance, the way lies ready open to them hereafter who may be so minded, to take away by little and little, that libertie which Christ and his gospel, not any magistrate, hath right to give: though this kind of his giving be but to give with one hand and take away with the other, which is a deluding not a giving.

As for scandals, if any man be offended at the conscientious libertie of another, it is a taken scandal, not a given. To heal one conscience, we must not wound another: and man must be exhorted to beware of scandals in christian libertie, not forced by the magistrate; lest while he goes about to take away the scandal, which is uncertain whether given or taken, he take away our libertie, which is the certain and the sacred gift of God, neither to be touched by him, nor to be parted with by us. None more cautious of giving scandal than St. Paul. Yet, while he made himself “servant to all, that he might gain the more,” he made himself so of his accord, was not made so by outward force, testifying at the same time that he “was free from all men:” (1 Cor. ix. 19.) and thereafter exhorts us also, (Gal. V. 13.) “Ye were called to libertie, &c. but by love serve one another:” then not by force.

As for that fear, lest prophane and licentious men should be encouraged to omit the performance of religious and holy duties, how can that care belong to the civil magistrate, especially to his force? For, if prophane and licentious persons must not neglect the performance of religious and holy

duties, it implies, that such duties they can perform; which no protestant will affirm. They who mean the outward performance, may so explain it, and then it will appear more plainly, that such performance of religious duties, especially by prophane and licentious persons, is a dishonouring, rather than a worshiping of God, and not only by him not required, but detested: (Pro. xxi. 27.) “The sacrifice of the wicked is an abomination: how much more when he bringeth it with a wicked mind? To compel, therefore, the prophane to things holy in his prophaneness, is all one under the gospel, as to have compelled the unclean to sacrifice in his uncleanness under the law.

And I add withal, that to compel the licentious in his licentiousness, and the conscientious against his conscience, comes all to one; tends not to the honour of God, but to the multiplying and the aggravating of sin to them both. We read not that Christ ever exercised force but once; and that was to drive prophane ones out of his temple, not to force them in: and if their being there was an offence, we find, by many other scriptures, that their praying there was an abomination: and yet to the jewish law that nation, as a servant, was obliged; but to the gospel, each person is left voluntary, called only, as a son, by the preaching of the word; not to be driven in by edicts and force of arms. For, if by the apostle, (Rom. xii. 1) “we are beseeched, as brethren, by the mercies of God, to present our bodies a living sacrifice, holy, acceptable to God, which is our reasonable service” or worship, then is no man to be forced by the compulsive laws of men, to present his body a dead sacrifice, and so, under the gospel, most unholy and unacceptable, because it is his unreasonable service, that is to say, not only unwilling, but unconscionable. But if prophane and licentious persons may not omit the performance of holy duties, why may they not partake of holy things? Why are they prohibited the lord’s supper; since both the one and the other action may be outward; and outward performance of duty may attain at least an outward participation of benefit? The church denying them that communion of grace and thanksgiving, as it justly doth, why doth the magistrate compel them to the union of performing that which they neither truly can, being themselves unholy, and to do, seemingly is both hateful to God, and perhaps no less dangerous to perform holy duties irreligiously, than to receive holy signs or sacraments unworthily. All prophane and licentious men, so known, can be considered but either so without the

church as never yet within it, or departed thence of their own accord, or excommunicate: if never yet within the church, whom the apostle, and so consequently the church, have nought to do to judge them, (as he professes 1 Cor. v. 12.) by what authoritie doth the magistrate judge, or, which is worse, compel, in relation to the church? If departed of his own accord, like that lost sheep Luke xv. 4, &c. the true church either with her own, or any borrowed force, worries him not in again, but rather in all charitable manner sends after him; and if she find him, lay him gently on her shoulders; bears him, yea bears his burdens, his errors, his infirmities any way tolerable, “so fulfilling the law of Christ:” (Gal. vi. 2.) if excommunicate, whom the church hath bid go out, in whose name doth the magistrate compel to go in? The church indeed hinders none from hearing in her public congregation, for the doors are open to all: nor excommunicates to destruction, but as much as in her lies, to a final saving. Her meaning therefore must needs be, that as her driving out brings on no outward penaltie, to no outward force or penaltie of an improper and only a destructive power, should drive in again her infectious sheep; therefore sent out, because infectious, and not driven in, but with the danger not only of the whole and sound, but also of his own utter perishing.

Since force neither instructs in religion, nor begets repentance or amendment of life, but, on the contrarie, hardness of heart, formalitie, hypocrisie, and, as I said before, every increase of sin; more and more alienates the mind from a violent religion expelling out and compelling in, and reduces it to a condition like that which the Britons complain of in our story, driven to and fro between the Picts and the sea. If, after excommunication he be found intractable, incurable, and will not hear the church, he becomes as one never yet within her pale, “a heathen or a publican,” (Matt xviii. 17.) not further to be judged, no not by the magistrate, unless for civil causes; but left to the final sentence of that judge, whose coming shall be in flames of fire; that *Maran-athà*, (1 Cor. xvi. 22) than which to him so left, nothing can be more dreadful, and oftentimes to him particularly nothing more speedy, that is to say, the Lord cometh: In the meanwhile, delivered up to satan, (1 Cor. v. 5. 1 Tim. i. 20.) that is, from the fold of Christ and kingdom of grace, to the world again, which is the kingdom of satan: and as he was received “from darkness to light, and from the power of satan to God,” (Acts xxvi. 18;) so now

delivered up again from light to darkness, and from God to the power of satan; yet so, as is in both places manifested, to the intent of saving him, brought sooner to contrition by spiritual, than by any corporal severity.

But grant it belonging any way to the magistrate, that prophane and licentious persons omit not the performance of holy duties, which in them were odious to God even under the law, much more now under the gospel, yet ought his care both as a magistrate and a christian, to be much more that conscience be not inwardly violated, than that licence in these things be made outwardly conformable: since his part is undoubtedly as a christian, which puts him upon this office much more than as a magistrate, in all respects to have more care of the conscientious than of the prophane; and not for their sakes to take away, (while they pretend to give,) or to diminish the rightful libertie of religious consciences.

On these four scriptural reasons, as on a firm square, this truth, the right of christian and evangelic libertie, will stand immovable against all those pretended consequences of license and confusion, which, for the most part, men most licentious and confused themselves, or such as whose severity would be wiser than divine wisdom, are ever aptest to object against the ways of God: as if God without them, when he gave us this libertie, knew not of the worst which these men in their arrogance pretend will follow: yet, knowing all their worst, he gave us this libertie, as by him judged best.

As to those magistrates who think it their work to settle religion, and those ministers or others, who so oft call upon them to do so, I trust, that having well considered what hath been here argued, neither they will continue in that intention, nor these in that expectation from them: when they shall find that the settlement of religion belongs only to each particular church by persuasive and spiritual means within itself, and that the defence only of the church belongs to the magistrate. Had he once learnt, not further to concern himself with church affairs, half his labour might be spared, and the commonwealth better tended. To which end, that which I premised in the beginning, and in due place treated of more at large, I desire now concluding, that they would consider seriously what religion is: and they will find it to be in sum, both our belief and our practice depending upon God only. That there can be no place then left for the magistrate, of his

force, in the settlement of religion, by appointing either what we shall believe in divine things, or practice in religious, (neither of which things are in the power of man either to perform himself, or to enable others,) I persuade me, in the christian ingenuitie of all religious men, the more they examine seriously, the more they will find clearly to be true: and find, how false and deceivable that common saying is, which is so much relied upon, that the christian magistrate is “*custos utriusque tabulae*,” keeper of both tables; unless is meant by keeper, the defender only: neither can that maxim be maintained, by any proof or argument which hath not in this discourse, first or last, been refuted. For the two tables, or ten commandments, teach our duty to God and our neighbour, from the love of both; give magistrates no authority to force either: they seek that from the judicial law; though on false grounds, especially in the first table, as I have shewn; and both in first and second executes that authoritie, for the most part, not according to God’s judicial laws, but their own.

As for civil crimes, and of the outward man, which all are not, no not of those against the second table, as that of covering; in them what power they have, they had from the beginning, long before Moses of the two tables were in being. And whether they be not now as little in being to be kept by any christian, as they are two legal tables, remains yet as undecided, as it is sure they never were yet delivered to the keeping of any christian magistrate. But, of these things, perhaps more some other time; what may serve the present hath been above discoursed sufficiently out of the scriptures; and to those produced, might be added testimonies, examples, experiences of all succeeding ages to these times, asserting this doctrine but having herein the scripture so copious and so plain, we have all that can be properly called true strength and nerve; the rest would be but pomp and incumbrance.

Pomp and oftentation of reading is admired among the vulgar: but doubtless, in matters of religion, he is learnedest who is plainest. The brevity I use, not exceeding a small MANUAL, will not, therefore, I suppose, be thought the less considerable, unless with them, perhaps, who think that great books only can determine great matters. I rather chose the common rule, not to make much ado, where less may serve; which, in controversies, and those especially of religion, would make them less

tedious, and by consequence read oftener, by many more, and with more benefit.

THE END.

*** END OF THE PROJECT GUTENBERG EBOOK A TREATISE OF
CIVIL POWER IN ECCLESIASTICAL CAUSES ***

Updated editions will replace the previous one—the old editions will be renamed.

Creating the works from print editions not protected by U.S. copyright law means that no one owns a United States copyright in these works, so the Foundation (and you!) can copy and distribute it in the United States without permission and without paying copyright royalties. Special rules, set forth in the General Terms of Use part of this license, apply to copying and distributing Project Gutenberg™ electronic works to protect the PROJECT GUTENBERG™ concept and trademark. Project Gutenberg is a registered trademark, and may not be used if you charge for an eBook, except by following the terms of the trademark license, including paying royalties for use of the Project Gutenberg trademark. If you do not charge anything for copies of this eBook, complying with the trademark license is very easy. You may use this eBook for nearly any purpose such as creation of derivative works, reports, performances and research. Project Gutenberg eBooks may be modified and printed and given away—you may do practically ANYTHING in the United States with eBooks not protected by U.S. copyright law. Redistribution is subject to the trademark license, especially commercial redistribution.

START: FULL LICENSE

THE FULL PROJECT GUTENBERG™ LICENSE

PLEASE READ THIS BEFORE YOU DISTRIBUTE OR USE THIS WORK

To protect the Project Gutenberg™ mission of promoting the free distribution of electronic works, by using or distributing this work (or any other work associated in any way with the phrase “Project Gutenberg”), you agree to comply with all the terms of the Full Project Gutenberg License available with this file or online at www.gutenberg.org/license.

Section 1. General Terms of Use and Redistributing Project Gutenberg electronic works

1.A. By reading or using any part of this Project Gutenberg electronic work, you indicate that you have read, understand, agree to and accept all the terms of this license and intellectual property (trademark/copyright) agreement. If you do not agree to abide by all the terms of this agreement, you must cease using and return or destroy all copies of Project Gutenberg electronic works in your possession. If you paid a fee for obtaining a copy of or access to a Project Gutenberg electronic work and you do not agree to be bound by the terms of this agreement, you may obtain a refund from the person or entity to whom you paid the fee as set forth in paragraph 1.E.8.

1.B. “Project Gutenberg” is a registered trademark. It may only be used on or associated in any way with an electronic work by people who agree to be bound by the terms of this agreement. There are a few things that you can do with most Project Gutenberg electronic works even without complying with the full terms of this agreement. See paragraph 1.C below. There are a lot of things you can do with Project Gutenberg electronic works if you follow the terms of this agreement and help preserve free future access to Project Gutenberg electronic works. See paragraph 1.E below.

1.C. The Project Gutenberg Literary Archive Foundation (“the Foundation” or PGLAF), owns a compilation copyright in the collection of Project Gutenberg electronic works. Nearly all the individual works in the collection are in the public domain in the United States. If an individual work is unprotected by copyright law in the United States and you are

located in the United States, we do not claim a right to prevent you from copying, distributing, performing, displaying or creating derivative works based on the work as long as all references to Project Gutenberg are removed. Of course, we hope that you will support the Project Gutenberg mission of promoting free access to electronic works by freely sharing Project Gutenberg works in compliance with the terms of this agreement for keeping the Project Gutenberg name associated with the work. You can easily comply with the terms of this agreement by keeping this work in the same format with its attached full Project Gutenberg License when you share it without charge with others.

1.D. The copyright laws of the place where you are located also govern what you can do with this work. Copyright laws in most countries are in a constant state of change. If you are outside the United States, check the laws of your country in addition to the terms of this agreement before downloading, copying, displaying, performing, distributing or creating derivative works based on this work or any other Project Gutenberg work. The Foundation makes no representations concerning the copyright status of any work in any country other than the United States.

1.E. Unless you have removed all references to Project Gutenberg:

1.E.1. The following sentence, with active links to, or other immediate access to, the full Project Gutenberg License must appear prominently whenever any copy of a Project Gutenberg work (any work on which the phrase “Project Gutenberg” appears, or with which the phrase “Project Gutenberg” is associated) is accessed, displayed, performed, viewed, copied or distributed:

This eBook is for the use of anyone anywhere in the United States and most other parts of the world at no cost and with almost no restrictions whatsoever. You may copy it, give it away or re-use it under the terms of the Project GutenbergTM License included with this eBook or online at www.gutenberg.org. If you are not located in the United States, you will have to check the laws of the country where you are located before using this eBook.

1.E.2. If an individual Project Gutenberg electronic work is derived from texts not protected by U.S. copyright law (does not contain a notice indicating that it is posted with permission of the copyright holder), the work can be copied and distributed to anyone in the United States without paying any fees or charges. If you are redistributing or providing access to a work with the phrase “Project Gutenberg” associated with or appearing on the work, you must comply either with the requirements of paragraphs 1.E.1 through 1.E.7 or obtain permission for the use of the work and the Project Gutenberg trademark as set forth in paragraphs 1.E.8 or 1.E.9.

1.E.3. If an individual Project Gutenberg electronic work is posted with the permission of the copyright holder, your use and distribution must comply with both paragraphs 1.E.1 through 1.E.7 and any additional terms imposed by the copyright holder. Additional terms will be linked to the Project Gutenberg License for all works posted with the permission of the copyright holder found at the beginning of this work.

1.E.4. Do not unlink or detach or remove the full Project Gutenberg License terms from this work, or any files containing a part of this work or any other work associated with Project Gutenberg.

1.E.5. Do not copy, display, perform, distribute or redistribute this electronic work, or any part of this electronic work, without prominently displaying the sentence set forth in paragraph 1.E.1 with active links or immediate access to the full terms of the Project Gutenberg License.

1.E.6. You may convert to and distribute this work in any binary, compressed, marked up, nonproprietary or proprietary form, including any word processing or hypertext form. However, if you provide access to or distribute copies of a Project Gutenberg work in a format other than “Plain Vanilla ASCII” or other format used in the official version posted on the official Project Gutenberg website (www.gutenberg.org), you must, at no additional cost, fee or expense to the user, provide a copy, a means of exporting a copy, or a means of obtaining a copy upon request, of the work in its original “Plain Vanilla ASCII” or other form. Any alternate format must include the full Project Gutenberg License as specified in paragraph 1.E.1.

1.E.7. Do not charge a fee for access to, viewing, displaying, performing, copying or distributing any Project Gutenberg works unless you comply with paragraph 1.E.8 or 1.E.9.

1.E.8. You may charge a reasonable fee for copies of or providing access to or distributing Project Gutenberg electronic works provided that:

- You pay a royalty fee of 20% of the gross profits you derive from the use of Project Gutenberg works calculated using the method you already use to calculate your applicable taxes. The fee is owed to the owner of the Project Gutenberg trademark, but he has agreed to donate royalties under this paragraph to the Project Gutenberg Literary Archive Foundation. Royalty payments must be paid within 60 days following each date on which you prepare (or are legally required to prepare) your periodic tax returns. Royalty payments should be clearly marked as such and sent to the Project Gutenberg Literary Archive Foundation at the address specified in Section 4, "Information about donations to the Project Gutenberg Literary Archive Foundation."
- You provide a full refund of any money paid by a user who notifies you in writing (or by e-mail) within 30 days of receipt that s/he does not agree to the terms of the full Project Gutenberg™ License. You must require such a user to return or destroy all copies of the works possessed in a physical medium and discontinue all use of and all access to other copies of Project Gutenberg™ works.
- You provide, in accordance with paragraph 1.F.3, a full refund of any money paid for a work or a replacement copy, if a defect in the electronic work is discovered and reported to you within 90 days of receipt of the work.
- You comply with all other terms of this agreement for free distribution of Project Gutenberg™ works.

1.E.9. If you wish to charge a fee or distribute a Project Gutenberg™ electronic work or group of works on different terms than are set forth in this agreement, you must obtain permission in writing from the Project Gutenberg Literary Archive Foundation, the manager of the Project

Gutenberg™ trademark. Contact the Foundation as set forth in Section 3 below.

1.F.

1.F.1. Project Gutenberg volunteers and employees expend considerable effort to identify, do copyright research on, transcribe and proofread works not protected by U.S. copyright law in creating the Project Gutenberg™ collection. Despite these efforts, Project Gutenberg™ electronic works, and the medium on which they may be stored, may contain “Defects,” such as, but not limited to, incomplete, inaccurate or corrupt data, transcription errors, a copyright or other intellectual property infringement, a defective or damaged disk or other medium, a computer virus, or computer codes that damage or cannot be read by your equipment.

1.F.2. LIMITED WARRANTY, DISCLAIMER OF DAMAGES - Except for the “Right of Replacement or Refund” described in paragraph 1.F.3, the Project Gutenberg Literary Archive Foundation, the owner of the Project Gutenberg™ trademark, and any other party distributing a Project Gutenberg™ electronic work under this agreement, disclaim all liability to you for damages, costs and expenses, including legal fees. YOU AGREE THAT YOU HAVE NO REMEDIES FOR NEGLIGENCE, STRICT LIABILITY, BREACH OF WARRANTY OR BREACH OF CONTRACT EXCEPT THOSE PROVIDED IN PARAGRAPH 1.F.3. YOU AGREE THAT THE FOUNDATION, THE TRADEMARK OWNER, AND ANY DISTRIBUTOR UNDER THIS AGREEMENT WILL NOT BE LIABLE TO YOU FOR ACTUAL, DIRECT, INDIRECT, CONSEQUENTIAL, PUNITIVE OR INCIDENTAL DAMAGES EVEN IF YOU GIVE NOTICE OF THE POSSIBILITY OF SUCH DAMAGE.

1.F.3. LIMITED RIGHT OF REPLACEMENT OR REFUND - If you discover a defect in this electronic work within 90 days of receiving it, you can receive a refund of the money (if any) you paid for it by sending a written explanation to the person you received the work from. If you received the work on a physical medium, you must return the medium with your written explanation. The person or entity that provided you with the defective work may elect to provide a replacement copy in lieu of a refund. If you received the work electronically, the person or entity providing it to

you may choose to give you a second opportunity to receive the work electronically in lieu of a refund. If the second copy is also defective, you may demand a refund in writing without further opportunities to fix the problem.

1.F.4. Except for the limited right of replacement or refund set forth in paragraph 1.F.3, this work is provided to you 'AS-IS', WITH NO OTHER WARRANTIES OF ANY KIND, EXPRESS OR IMPLIED, INCLUDING BUT NOT LIMITED TO WARRANTIES OF MERCHANTABILITY OR FITNESS FOR ANY PURPOSE.

1.F.5. Some states do not allow disclaimers of certain implied warranties or the exclusion or limitation of certain types of damages. If any disclaimer or limitation set forth in this agreement violates the law of the state applicable to this agreement, the agreement shall be interpreted to make the maximum disclaimer or limitation permitted by the applicable state law. The invalidity or unenforceability of any provision of this agreement shall not void the remaining provisions.

1.F.6. INDEMNITY - You agree to indemnify and hold the Foundation, the trademark owner, any agent or employee of the Foundation, anyone providing copies of Project Gutenberg™ electronic works in accordance with this agreement, and any volunteers associated with the production, promotion and distribution of Project Gutenberg™ electronic works, harmless from all liability, costs and expenses, including legal fees, that arise directly or indirectly from any of the following which you do or cause to occur: (a) distribution of this or any Project Gutenberg work, (b) alteration, modification, or additions or deletions to any Project Gutenberg work, and (c) any Defect you cause.

Section 2. Information about the Mission of Project Gutenberg

Project Gutenberg is synonymous with the free distribution of electronic works in formats readable by the widest variety of computers including obsolete, old, middle-aged and new computers. It exists because of the

efforts of hundreds of volunteers and donations from people in all walks of life.

Volunteers and financial support to provide volunteers with the assistance they need are critical to reaching Project Gutenberg's goals and ensuring that the Project Gutenberg collection will remain freely available for generations to come. In 2001, the Project Gutenberg Literary Archive Foundation was created to provide a secure and permanent future for Project Gutenberg and future generations. To learn more about the Project Gutenberg Literary Archive Foundation and how your efforts and donations can help, see Sections 3 and 4 and the Foundation information page at www.gutenberg.org.

Section 3. Information about the Project Gutenberg Literary Archive Foundation

The Project Gutenberg Literary Archive Foundation is a non-profit 501(c)(3) educational corporation organized under the laws of the state of Mississippi and granted tax exempt status by the Internal Revenue Service. The Foundation's EIN or federal tax identification number is 64-6221541. Contributions to the Project Gutenberg Literary Archive Foundation are tax deductible to the full extent permitted by U.S. federal laws and your state's laws.

The Foundation's business office is located at 41 Watchung Plaza #516, Montclair NJ 07042, USA, +1 (862) 621-9288. Email contact links and up to date contact information can be found at the Foundation's website and official page at www.gutenberg.org/contact

Section 4. Information about Donations to the Project Gutenberg Literary Archive Foundation

Project Gutenberg™ depends upon and cannot survive without widespread public support and donations to carry out its mission of increasing the number of public domain and licensed works that can be freely distributed in machine-readable form accessible by the widest array of equipment

including outdated equipment. Many small donations (\$1 to \$5,000) are particularly important to maintaining tax exempt status with the IRS.

The Foundation is committed to complying with the laws regulating charities and charitable donations in all 50 states of the United States. Compliance requirements are not uniform and it takes a considerable effort, much paperwork and many fees to meet and keep up with these requirements. We do not solicit donations in locations where we have not received written confirmation of compliance. To SEND DONATIONS or determine the status of compliance for any particular state visit www.gutenberg.org/donate.

While we cannot and do not solicit contributions from states where we have not met the solicitation requirements, we know of no prohibition against accepting unsolicited donations from donors in such states who approach us with offers to donate.

International donations are gratefully accepted, but we cannot make any statements concerning tax treatment of donations received from outside the United States. U.S. laws alone swamp our small staff.

Please check the Project Gutenberg web pages for current donation methods and addresses. Donations are accepted in a number of other ways including checks, online payments and credit card donations. To donate, please visit: www.gutenberg.org/donate.

Section 5. General Information About Project Gutenberg electronic works

Professor Michael S. Hart was the originator of the Project Gutenberg concept of a library of electronic works that could be freely shared with anyone. For forty years, he produced and distributed Project Gutenberg eBooks with only a loose network of volunteer support.

Project Gutenberg eBooks are often created from several printed editions, all of which are confirmed as not protected by copyright in the U.S. unless a

copyright notice is included. Thus, we do not necessarily keep eBooks in compliance with any particular paper edition.

Most people start at our website which has the main PG search facility:
www.gutenberg.org.

This website includes information about Project Gutenberg, including how to make donations to the Project Gutenberg Literary Archive Foundation, how to help produce our new eBooks, and how to subscribe to our email newsletter to hear about new eBooks.